



May 26, 2020

Bryan Forino
36 Clubhouse Road
Hamburg, NJ 07419

Dear Bryan:

I am pleased to offer you the position of Accounting and Financial Analyst for Johnstone Supply of Central NY. This letter is to confirm my offer and your acceptance of the position. You will be reporting directly to me as your Director of Finance & Administration. Your tentative start date is scheduled for June 8, 2020.

Your compensation will be at a bi-weekly rate of \$1,557.69 (\$40,500 annualized). You will be paid bi-weekly according to Johnstone Supply of Central NY's payroll practices and there is a one-week lag in pay. This is a full-time, exempt position and therefore not eligible to receive overtime pay.

Upon the successful completion of your 90-day probationary period you will become eligible for several employment benefits as outlined on the accompanying Benefits Overview.

This job offer is contingent upon the following:

- Satisfactory reference checks.
- Completion of a satisfactory background check.
- Motor vehicle check/MVR.

On your first day, you will be given an orientation by Human Resources. This orientation will include completing employment forms, reviewing fringe benefits, introduction to the team, and touring the premises. Please bring appropriate documentation for the completion of your new-hire forms, including proof that you are presently eligible to work in the United States for I-9 Form purposes. Failure to provide appropriate documentation within three days of hire will result in immediate termination of employment in accordance with the terms of the Immigration Reform and Control Act.

Please indicate your acceptance of our offer by signing below and returning one copy of the letter, with your original signature, to me no later than Friday, May 29, 2020. We would appreciate having your decision as soon as possible, but please feel free to talk to me further if you have any questions.

Bryan, I am confident that you have the skills, enthusiasm, and talent to be successful in this challenging position. I look forward to having you on my team.

Welcome to JOHNSTONE SUPPLY!

Sincerely,

Karen Craft, Director of Finance & Administration

Attachments: Job Description, Benefits Overview, Driver Information Request, List of Acceptable Documents for Form I-9, Background Authorization



Acknowledgement

I have read and understood the provisions of this offer of employment, and I accept the above conditional job offer. I understand that my employment with Johnstone Supply of Central NY is considered at will, meaning that either the company or I may terminate this employment relationship at any time with or without cause or notice.

This offer shall remain open until Friday, May 29, 2020. Any acceptance postmarked after this date will be considered invalid.

Date: 6/8/2020

Print Name: Bryan Forino

Signature: Bryan Forino

Please Print Clearly

APPLICATION FOR EMPLOYMENT

Company Name Johnstone Supply Date 6/8/2020

Please Answer All Questions. Résumés Are Not A Substitute For A Completed Application.

We are an equal opportunity employer. Applicants are considered for positions without regard to veteran status, uniformed servicemember status, race, color, religion, sex, national origin, age, physical or mental disability, genetic information or any other category protected by applicable federal, state, or local laws.

THIS COMPANY IS AN AT-WILL EMPLOYER AS ALLOWED BY APPLICABLE STATE LAW. THIS MEANS THAT REGARDLESS OF ANY PROVISION IN THIS APPLICATION, IF HIRED, THE COMPANY OR I MAY TERMINATE THE EMPLOYMENT RELATIONSHIP AT ANY TIME, FOR ANY REASON, WITH OR WITHOUT CAUSE OR NOTICE.

Applicant Name Bryan Forino Position Applied For Accountant & Financial Analyst (list only one)

Telephone Number () - Alternate/Cellular Telephone Number (973) 222 - 0102

Present Address 102 Bending Creek Road Apt. # 3 Rochester NY 14624
Street, Apartment, or Unit Number

Rochester NY 14624 How long have you lived there 3 days Years/Months
City State Zip

Email Address (optional) forino.bryan5@gmail.com

If under the age of 18, can you produce the necessary work certificate at the time of employment? Yes ☐ No ☐

Type of employment desired? Full-time ☒ Part-time ☐ (Specify Hours) _____

Are you willing to work overtime? Yes ☒ No ☐ Date on which you can start work if hired 6/8/2020

Have you previously applied for employment with this Company? Yes ☐ No ☒

If Yes, when and where did you apply? _____

Have you ever been employed by this Company? Yes ☐ No ☒

If Yes, provide dates of employment, location and reason for separation from employment. _____

If applicable, below list any other names by which you have been known which may be necessary to allow us to confirm your work and educational record. For example, change of name, use of an assumed name, nickname, etc.

Education	School Name and Location (Address, City, State)	Course of Study or Major	Graduate? Y or N	# of Years Completed	Honors Received
High School	<u>Vernon Township</u>		<u>Y</u>	<u>4</u>	<u>Honor Roll</u>
College	<u>Roberts Wesleyan</u>	<u>MGT</u>	<u>Y</u>	<u>3</u>	<u>Deans List</u>
Graduate/ Professional					
Trade or Correspondence					

WORK EXPERIENCE

Please list the names of your present and/or previous employers in chronological order with present or most recent employer listed first. Provide information for at least the most recent ten (10) year period. Attach additional sheets if needed. If self-employed, supply firm name and business references. You may include any verifiable work performed on a volunteer basis, internships, or military service. Your failure to completely respond to each inquiry may disqualify you for consideration from employment. Do not answer "see résumé."

Employer Bausch & Lomb 1400 Goodman St N, Rochester NY Medica
~~Johnston Supply~~ ~~75 Hulse St~~
 Name Tracy Putz Address _____ Type of Business _____
 Telephone (800) 553-5340 Dates Employed From 6/3/2009 To 8/16/19
 Job Title Sales Operations Analyst Duties Rebate database
 Supervisor's Name Tracy Putz May we contact? ☒ Yes ☐ No If No, why not? _____
 Reason for Leaving? Summer Internship
 What will this employer say was the reason your employment terminated? only summer intern
 Were you ever disciplined? If so, for what? N/A
 How much notice did you give when resigning? If none, explain. _____

Employer Add Bookkeeping 15 Apple Ridge Rd NY Bookkeeping
 Name _____ Address _____ Type of Business _____
 Telephone (973) 222-2801 Dates Employed From ____/____/____ To ____/____/____
 Job Title Junior Bookkeeper Duties Bookkeeping
 Supervisor's Name _____ May we contact? ☒ Yes ☐ No If No, why not? _____
 Reason for Leaving? College
 What will this employer say was the reason your employment terminated? Left to attend college in Rochester
 Were you ever disciplined? If so, for what? N/A
 How much notice did you give when resigning? If none, explain. _____

Have you ever been terminated or asked to resign from any job? ☐ Yes ☒ No If Yes how many times? _____

Has your employment ever been terminated by mutual agreement? ☐ Yes ☒ No If Yes how many times? _____

Have you ever been given the choice to resign rather than be terminated? ☐ Yes ☒ No If Yes how many times? _____

If you answered Yes to any of the above three questions, please explain the circumstances of each occasion.

REFERENCES [Optional]

Please list the names of additional work-related references we may contact. Individuals with no prior work experience may list school or volunteer-related references.

NAME	POSITION	COMPANY	WORK RELATIONSHIP (i.e. supervisor, co-worker)	TELEPHONE
Andrew Dorr	Head Cross-Country Track Coach	Roberts Wesleyan College	Coach	585 831 3297
Tracy Putz	Sr Sales Analyst	Bausch & Lomb	Supervisor	800 553 5340

Please list the names of personal references (not previous employers or relatives) who you know that we may contact.

NAME	OCCUPATION	ADDRESS	TELEPHONE	NUMBER OF YEARS KNOWN
Justin Shaffer	Security Guard		585 953 6387	3
Matthew Johnson	Teacher		716 908 9174	3

DRIVING INFORMATION [Optional] (Complete only if driving is an essential function of the job for which you are applying).

Do you have a current valid driver's license? ☒ Yes ☐ No If yes, License No.: P 6602 10264 12975 State: NJ

Expiration Date: 12-22-2023

If you do not have a driver's license for the state in which you currently reside, why not?

Has your license ever been suspended or revoked? ☐ Yes ☒ No

If yes, explain:

Do you have personal automobile insurance? ☒ Yes ☐ No

If no, explain:

Have you ever been denied personal automobile insurance, or has it ever been terminated or suspended? ☐ Yes ☒ No If yes, explain:

Please list all moving traffic violations in the last five (5) years:

OFFENSE	DATE	LOCATION	COMMENTS

APPLICANT CERTIFICATION

I understand and agree that if driving is a requirement of the job for which I am applying, my employment and/or continued employment is contingent on possessing a valid driver's license for the state in which I reside and automobile liability insurance in an amount equal to the minimum required by the state where I reside.

I understand that the Company may now have, or may establish, a drug-free workplace or drug and/or alcohol testing program consistent with applicable federal, state, and local law. If the Company has such a program and I am offered a conditional offer of employment, I understand that if a pre-employment (post-offer) drug and/or alcohol test is positive, the employment offer may be withdrawn. I agree to work under the conditions requiring a drug-free workplace, consistent with applicable federal, state, and local law. I also understand that all employees of the location, pursuant to the Company's policy and federal, state, and local law, may be subject to urinalysis and/or blood screening or other medically recognized tests designed to detect the presence of alcohol or illegal or controlled drugs. If employed, I understand that the taking of alcohol and/or drug tests is a condition of continual employment and I agree to undergo alcohol and drug testing consistent with the Company's policies and applicable federal, state, and local law.

If employed by the Company, I understand and agree that the Company, to the extent permitted by federal, state, and local law, may exercise its right, without prior warning or notice, to conduct investigations of property (including, but not limited to, files, lockers, desks, vehicles, and computers) and, in certain circumstances, my personal property.

I understand and agree that as a condition of employment and to the extent permitted by federal, state, and local law, I may be required to sign a confidentiality, restrictive covenant, and/or conflict of interest statement.

I certify that all the information on this application, my résumé, or any supporting documents I may present during any interview is and will be complete and accurate to the best of my knowledge. I understand that any falsification, misrepresentation, or omission of any information may result in disqualification from consideration for employment or, if employed, disciplinary action, up to and including immediate dismissal.

THIS COMPANY IS AN AT-WILL EMPLOYER AS ALLOWED BY APPLICABLE STATE LAW. THIS MEANS THAT REGARDLESS OF ANY PROVISION IN THIS APPLICATION, IF HIRED, THE COMPANY OR I MAY TERMINATE THE EMPLOYMENT RELATIONSHIP AT ANY TIME, FOR ANY REASON, WITH OR WITHOUT CAUSE OR NOTICE. NOTHING IN THIS APPLICATION OR IN ANY DOCUMENT OR STATEMENT, WRITTEN OR ORAL, SHALL LIMIT THE RIGHT TO TERMINATE EMPLOYMENT AT-WILL. NO OFFICER, EMPLOYEE OR REPRESENTATIVE OF THE COMPANY IS AUTHORIZED TO ENTER INTO AN AGREEMENT—EXPRESS OR IMPLIED—WITH ME OR ANY APPLICANT FOR EMPLOYMENT FOR A SPECIFIED PERIOD OF TIME UNLESS SUCH AN AGREEMENT IS IN A WRITTEN CONTRACT SIGNED BY THE PRESIDENT OF THE COMPANY. IF HIRED, I AGREE TO CONFORM TO THE RULES AND REGULATIONS OF THE COMPANY, AND I UNDERSTAND THAT THE COMPANY HAS COMPLETE DISCRETION TO MODIFY SUCH RULES AND REGULATIONS AT ANY TIME, EXCEPT THAT IT WILL NOT MODIFY ITS POLICY OF EMPLOYMENT AT-WILL.

I authorize the Company or its agents to confirm all statements contained in this application and/or résumé as it relates to the position I am seeking to the extent permitted by federal, state, or local law. I agree to complete any requisite authorization forms for the background investigation which may be permitted by federal, state and/or local law. If applicable and allowed by law, I will receive separate written notification regarding the Company's intent to obtain "consumer reports."

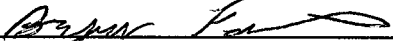
I authorize and consent to, without reservation, any party or agency contacted by this employer to furnish the above-mentioned information. I hereby release, discharge, and hold harmless, to the extent permitted by federal, state, and local law, any party delivering information to the Company or its duly authorized representative pursuant to this authorization from any liability, claims, charges, or causes of action which I may have as a result of the delivery or disclosure of the above requested information. I hereby release from liability the Company and its representative for seeking such information and all other persons, corporations, or organizations furnishing such information. Further, if hired, I authorize the company to provide truthful information concerning my employment to future employers and hold the company harmless for providing such information.

If hired by this Company, I understand that I will be required to provide genuine documentation establishing my identity and eligibility to be legally employed in the United States by this Company. I also understand this Company employs only individuals who are legally eligible to work in the United States.

THIS APPLICATION WILL BE CONSIDERED ACTIVE FOR A MAXIMUM OF SIXTY (60) DAYS. IF YOU WISH TO BE CONSIDERED FOR EMPLOYMENT AFTER THAT TIME, YOU MUST REAPPLY.

I CERTIFY THAT ALL OF THE INFORMATION THAT I HAVE PROVIDED ON THIS APPLICATION IS TRUE, ACCURATE, AND COMPLETE.

DO NOT SIGN UNTIL YOU HAVE READ ALL OF THE INFORMATION CONTAINED IN THE APPLICATION.

Applicant Signature  **Date** 6 / 8 / 2020

If the applicant is a minor, the foregoing release and consent must be signed by the applicant's parent or legal guardian. Signature by the applicant's parent or legal guardian constitutes acknowledgement by the applicant and the parent or legal guardian that the Company, to the extent permitted by federal, state, and local law, can test the applicant for illegal or controlled substances, conduct inspections of property without notice, and communicate test results to Company personnel who need to know, the applicant, and the applicant's legal guardian.

Parent/Legal Guardian

Witness

Date

Date



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

JOB DESCRIPTION

Job Title: **Accounting and Financial Analyst**
FLSA Status: Exempt
Reports To: Controller

Position Summary:

Contributes to the financial and operational integrity of Johnstone Supply with hands-on, timely and accurate oversight of key accounting functions including the general ledger and financial reporting, cash management and vendor payments, financial trend analysis and the continued evaluation and improvement of Company process and procedure.

Subordinate Summary:

This position has no formal supervisory responsibilities.

Essential Job Results and Responsibilities:

Core Accounting Responsibilities:

1. General ledger account maintenance and reconciliation
2. Investigation and resolution of accounting discrepancies
3. Accounts payable process management
4. Cash management and forecasting
5. Investigate and resolve inventory discrepancies
6. Vendor rebate management
7. Process manual and electronic vendor payments
8. Reconcile, post and process credit card purchases
9. Support branch warranty claim management
10. Maintain and monitor 1099 compliance

Core Financial Analyst Responsibilities:

1. Identify and recommend analysis to improve decision making capabilities.
2. Preparation of monthly financial statements
3. Monthly and ad-hoc financial trend analysis
4. Inventory trend analysis
5. Branch and customer sales analysis
6. Other analysis as requested by management

Accounting and Financial Analyst- Continued

Physical Demands & Work Environment

The physical demands and work environment characteristics described here are representative of those an employee encounters while performing the essential functions of this job. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

Physical Demands: While performing the duties of this job, the employee is regularly required to sit or stand; walk; use hands to handle or feel; reach with hands and arms; climb or balance; talk or hear; and lift up to 40 pounds. The employee is occasionally required to stoop, kneel, crouch, crawl or smell. Specific vision requirements are close vision, distance vision, depth perception, and the ability to adjust focus.

Office Environment: Typical office building with most work performed at a desk using equipment such as PCs, phones, scanners, copiers, faxes, and paper files.

Skills Summary:

Problem Solving Skills	Oral Communications
Math Aptitude	Written Communication
Computer Skills	Effective Reading
Interpersonal Skills	Diplomacy
Time Management	Energetic
Organization	Ability to lift 40 pounds

The Accounting and Financial Analyst will maintain the strictest confidentiality on all corporate matters including, but not limited to: marketing strategies, operational structures, financial performance data and all subjects that may have an adverse effect on the company in the marketplace if they were made known outside the company.

Approved by:


Incumbent

6/8/2020
Date

Supervisor

Date

Employee Information Form

Employer to Complete

Client Number _____

Date 6/8/2020

Select One ☒ New Employee
☐ Update Current Employee Information
☐ Rehire Previous Employee on Paychex System

Employee Number _____ Department Number _____

Job Title Accounting & Financial Analyst

Hire Date 06/08/2020

Birth Date _____

Workers' Compensation Class Code _____ ☒ Full-time ☐ Part-time ☐ Seasonal

Salary (Per Pay Period) \$1557.69

OR

Hourly Rate 1 \$ _____ Hourly Rate 2 \$ _____ Hourly Rate 3 \$ _____

Payroll Frequency ☐ Weekly ☒ Bi-weekly ☐ Semi-monthly ☐ Monthly

Federal Exemptions 0 Additional \$ _____ Flat \$ _____

What state does this employee work in? New York

What state should be withholding for this employer? New York

State Exemptions 0 Additional \$ _____ Flat \$ _____

Are local taxes required? ☐ Yes - Town/City/County _____ ☒ No

Will direct deposit be sent to this employee? ☒ Yes ☐ No

Employee to Complete

Last Name Ferino First Name Bryen Initial D

Address 102 Bending Creek Rd County Monroe

City Rochester State NY Zip Code 14624

Telephone Number (973) 222 0102 Sex ☒ Male ☐ Female

Work E-mail Address ferino.bryen5@gmail.com

Personal E-mail Address (optional) _____

Marital Status ☒ Single ☐ Married ☐ Married, but Withhold at Higher Single Rate

Social Security Number 139-04-3381

Emergency Contact Information

Name Caren DeJonge Relationship Spouse

Emergency Telephone (585) 596 5889



Notice and Acknowledgement of Pay Rate and Payday
Under Section 195.1 of the New York State Labor Law
Notice for Exempt Employees

1. Employer Information

Name:

The KL Group, Inc.

Doing Business As (DBA) Name(s):

Johnstone Supply of Central NY
Johnstone Supply of Rochester
Johnstone Supply of Syracuse

FEIN (optional):

Physical Address:

77 Halstead St. Suite 3
Rochester, NY 14610

Mailing Address:

Same as Physical Address

Phone: 585-482-8000

3. Employee's pay rate(s): State if pay is based on an hourly, salary, day rate, piece rate, or other basis.
\$1,557.69 Salary

Employers may not pay a non-hourly rate to a non-exempt employee in the Hospitality Industry, except for commissioned salespeople.

4. Allowances taken:

- ☒ None
☐ Tips _____ per hour
☐ Meals _____ per meal
☐ Lodging _____
☐ Other _____

5. Regular payday: Friday _____

6. Pay is:

- ☐ Weekly
☒ Bi-weekly
☐ Other: _____

7. Overtime Pay Rate:

Most workers in NYS must receive at least 1½ times their regular rate of pay for all hours worked over 40 in a workweek, with few exceptions. A limited number of employees must only be paid overtime at 1½ times the minimum wage rate, or not at all.

This employee is exempt from overtime under the following exemption (optional):

8. Employee Acknowledgement:

On this day, I received notice of my pay rate, overtime rate (if eligible), allowances, and designated payday. I told my employer what my primary language is.

Check one:

☒ I have been given this pay notice in English because it is my primary language.

☐ My primary language is _____ I have been given this pay notice in English only, because the Department of Labor does not yet offer a pay notice form in my primary language.

Bryan Forino
Print Employee Name

Bryan Forino
Employee Signature

6/16/2020
Date

Kenneth Livingston, President
Preparer Name and Title

The employee must receive a signed copy of this form. The employer must keep the original for 6 years.

Please note: It is unlawful for an employee to be paid less than an employee of the opposite sex for equal work. Employers also may not prohibit employees from discussing wages with their co-workers.

Employee's Withholding Certificate

OMB No. 1545-0074

- ▶ **Complete Form W-4 so that your employer can withhold the correct federal income tax from your pay.**
- ▶ **Give Form W-4 to your employer.**
- ▶ **Your withholding is subject to review by the IRS.**

2020

Step 1: Enter Personal Information	(a) First name and middle initial Bryan D	Last name Forino	(b) Social security number 139-04-3381
	Address 102 Bending Creek Road Rochester NY, 14624		▶ Does your name match the name on your social security card? If not, to ensure you get credit for your earnings, contact SSA at 800-772-1213 or go to www.ssa.gov .
	City or town, state, and ZIP code Rochester NY 14624		
	(c) ☒ Single or Married filing separately ☐ Married filing jointly (or Qualifying widow(er)) ☐ Head of household (Check only if you're unmarried and pay more than half the costs of keeping up a home for yourself and a qualifying individual.)		

Complete Steps 2-4 ONLY if they apply to you; otherwise, skip to Step 5. See page 2 for more information on each step, who can claim exemption from withholding, when to use the online estimator, and privacy.

Step 2:
Multiple Jobs or Spouse Works

Complete this step if you (1) hold more than one job at a time, or (2) are married filing jointly and your spouse also works. The correct amount of withholding depends on income earned from all of these jobs.

Do **only one** of the following.

(a) Use the estimator at www.irs.gov/W4App for most accurate withholding for this step (and Steps 3-4); or

(b) Use the Multiple Jobs Worksheet on page 3 and enter the result in Step 4(c) below for roughly accurate withholding; or

(c) If there are only two jobs total, you may check this box. Do the same on Form W-4 for the other job. This option is accurate for jobs with similar pay; otherwise, more tax than necessary may be withheld ☐

TIP: To be accurate, submit a 2020 Form W-4 for all other jobs. If you (or your spouse) have self-employment income, including as an independent contractor, use the estimator.

Complete Steps 3-4(b) on Form W-4 for only ONE of these jobs. Leave those steps blank for the other jobs. (Your withholding will be most accurate if you complete Steps 3-4(b) on the Form W-4 for the highest paying job.)

Step 3: Claim Dependents	If your income will be \$200,000 or less (\$400,000 or less if married filing jointly):		
	Multiply the number of qualifying children under age 17 by \$2,000 ▶ \$ <u>0</u>		
	Multiply the number of other dependents by \$500 ▶ \$ <u>0</u>		
	Add the amounts above and enter the total here	3	\$ <u>0</u>
Step 4 (optional): Other Adjustments	(a) Other income (not from jobs). If you want tax withheld for other income you expect this year that won't have withholding, enter the amount of other income here. This may include interest, dividends, and retirement income	4(a)	\$ <u>0</u>
	(b) Deductions. If you expect to claim deductions other than the standard deduction and want to reduce your withholding, use the Deductions Worksheet on page 3 and enter the result here	4(b)	\$ <u>0</u>
	(c) Extra withholding. Enter any additional tax you want withheld each pay period	4(c)	\$ <u>0</u>

Step 5: Sign Here	Under penalties of perjury, I declare that this certificate, to the best of my knowledge and belief, is true, correct, and complete.		
	▶ <u><i>Bryan Forino</i></u> Employee's signature (This form is not valid unless you sign it.)		▶ <u>6/8/2020</u> Date
Employers Only	Employer's name and address	First date of employment	Employer identification number (EIN)



Department of Taxation and Finance

Employee's Withholding Allowance Certificate**IT-2104**

New York State • New York City • Yonkers

First name and middle initial Bryan D		Last name Ponino		Your Social Security number 139-04-3381	
Permanent home address (number and street or rural route) 102 Beeding Creek Rd Apt #3				Apartment number 3	
City, village, or post office Rochester NY		State NY		ZIP code 14624	
Are you a resident of New York City? Yes ☐ No ☒ Are you a resident of Yonkers? Yes ☐ No ☒					
Complete the worksheet on page 4 before making any entries. 1 Total number of allowances you are claiming for New York State and Yonkers, if applicable (from line 20) 1 2 Total number of allowances for New York City (from line 35) 2					
Use lines 3, 4, and 5 below to have additional withholding per pay period under special agreement with your employer.					
3 New York State amount				3 0	
4 New York City amount				4	
5 Yonkers amount				5	

I certify that I am entitled to the number of withholding allowances claimed on this certificate.

Employee's signature 	Date 6/16/2020
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Penalty – A penalty of \$500 may be imposed for any false statement you make that decreases the amount of money you have withheld from your wages. You may also be subject to criminal penalties.

Employee: detach this page and give it to your employer; keep a copy for your records.

Employer: Keep this certificate with your records.

Mark an X in box A and/or box B to indicate why you are sending a copy of this form to New York State (see instructions):

A Employee claimed more than 14 exemption allowances for NYS A ☐B Employee is a new hire or a rehire ... B ☐ First date employee performed services for pay (mm-dd-yyyy) (see instr.): Are dependent health insurance benefits available for this employee? Yes ☐ No ☐If Yes, enter the date the employee qualifies (mm-dd-yyyy):

Employer's name and address (Employer: complete this section only if you are sending a copy of this form to the NYS Tax Department.)	Employer identification number

Instructions**Changes effective for 2020**

Form IT-2104 has been revised for tax year 2020. The worksheet on page 4 and the charts beginning on page 5, used to compute withholding allowances or to enter an additional dollar amount on line(s) 3, 4, or 5, have been revised. If you previously filed a Form IT-2104 and used the worksheet or charts, you should complete a new 2020 Form IT-2104 and give it to your employer.

Who should file this form

This certificate, Form IT-2104, is completed by an employee and given to the employer to instruct the employer how much New York State (and New York City and Yonkers) tax to withhold from the employee's pay. The more allowances claimed, the lower the amount of tax withheld.

If the federal Form W-4 you most recently submitted to your employer was for tax year 2019 or earlier, and you do not file Form IT-2104, your employer may use the same number of allowances you claimed on your federal Form W-4. Due to differences in tax law, this may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers.

For tax years 2020 or later, withholding allowances are no longer reported on federal Form W-4. Therefore, if you submit a federal Form W-4 to your

employer for tax year 2020 or later, and you do not file Form IT-2104, your employer may use zero as your number of allowances. This may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers.

Complete Form IT-2104 each year and file it with your employer if the number of allowances you may claim is different from federal Form W-4 or has changed. Common reasons for completing a new Form IT-2104 each year include the following:

- You started a new job.
- You are no longer a dependent.
- Your individual circumstances may have changed (for example, you were married or have an additional child).
- You moved into or out of NYC or Yonkers.
- You itemize your deductions on your personal income tax return.
- You claim allowances for New York State credits.
- You owed tax or received a large refund when you filed your personal income tax return for the past year.
- Your wages have increased and you expect to earn \$107,650 or more during the tax year.

POST-OFFER SELF-IDENTIFICATION FORM

Name: Bryan Forino

Date: 6/8/2020

Johnstone Supply is an Equal Opportunity Employer committed to the policies and principles of Non-Discrimination and Affirmative Action.

GENDER: (Check one)

☒ Male ☐ Female

RACE/ETHNICITY:

Are you Hispanic or Latino? Yes ☐ No ☐

If you answered "No" to the question "Are you Hispanic or Latino?" please check the applicable race box (check one):

- | | |
|---|--|
| ☒ White (Not Hispanic or Latino) | ☐ American Indian or Alaska Native (Not Hispanic or Latino) |
| ☐ Asian (Not Hispanic or Latino) | ☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino) |
| ☐ Black or African American (Not Hispanic or Latino) | ☐ Two or More Races – All persons who identify with more than one of the above five races. (Not Hispanic or Latino) |

If you selected "Two or More Races" please identify the race with which you primarily identify:

- | | |
|---|---|
| ☒ White (Not Hispanic or Latino) | ☐ American Indian or Alaska Native (Not Hispanic or Latino) |
| ☐ Asian (Not Hispanic or Latino) | ☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino) |
| ☐ Black or African American (Not Hispanic or Latino) | |

VETERAN STATUS: (Check all that apply)

- ☐ I am **not** a veteran under any of the categories below. **OR** I am **not** a veteran of the U.S. Armed Forces.
- ☐ I am a **Disabled Veteran** – (1) A veteran of the U.S. military, ground, naval or air service who is entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs, or (2) A person who was discharged or released from active duty because of a service-connected disability.
- ☐ I am a **Recently Separated Veteran** – Any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S. military service.

Enter Date of Separation: _____

- ☐ I am an **Armed Forces Service Medal Veteran** – Any veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.
- ☐ I am an **Other Protected Veteran** – A veteran who served on active duty in the U.S. military, ground, naval or air service during a war or in a campaign or expedition for which a campaign badge has been authorized, under the laws administered by the Department of Defense.

Direct Deposit Enrollment/Change Form*

Company Name and/or Client Number Johnstone Supply

Employee/Worker Name Bryan Forino Employee/Worker Number _____

EMPLOYEE/WORKER: Retain a copy of this form for your records. Return the original to your employer/company.

EMPLOYER/COMPANY: Return this form to your local Paychex office. For clients using on-line services, please retain a copy of this document for your records.

COMPLETE TO ENROLL / ADD / CHANGE BANK ACCOUNTS - PLEASE PRINT CLEARLY IN BLACK/BLUE INK ONLY

Type of Account: ☒ Checking ☐ Savings	Accountholder's Name: <u>Chase Bryan Forino</u>
Routing/Transit Number <u>021202337</u>	
Checking/Savings Account Number** <u>564638788</u>	
Financial Institution ("Bank") Name <u>Chase</u>	
I wish to deposit (check one): ☒ <u>100</u> % of Net ☐ Specific Dollar Amount \$ _____ .00 ☐ Remainder of Net Pay	
Type of Account: ☐ Checking ☐ Savings	Accountholder's Name: _____
Routing/Transit Number _____	
Checking/Savings Account Number** _____	
Financial Institution ("Bank") Name _____	
I wish to deposit (check one): ☐ _____ % of Net ☐ Specific Dollar Amount \$ _____ .00 ☐ Remainder of Net Pay	

COMPLETE IF CHANGING EXISTING DEPOSIT AMOUNTS - PLEASE PRINT CLEARLY IN BLACK/BLUE INK ONLY

Type of Account: ☐ Checking ☐ Savings	Accountholder's Name: _____
Routing/Transit Number _____	
Checking/Savings Account Number** _____	
Financial Institution ("Bank") Name _____	
I wish to change my deposit amount to (check one): ☐ From _____ % to _____ % of Net ☐ From \$ _____ .00 To \$ _____ .00 ☐ Remainder of Net Pay	

EMPLOYEE/WORKER CONFIRMATION STATEMENT

PLEASE SIGN IN BLACK/BLUE INK ONLY

I authorize my employer/company to deposit my earnings into the bank account(s) specified above and, if necessary, to electronically debit my account to correct erroneous entries. I certify my account(s) allow these transactions. Furthermore, I certify that the above listed account number accurately reflects my intended receiving account. I agree that direct deposit transactions I authorize comply with all applicable laws. My signature below indicates that I am agreeing that I am either the accountholder or have the authority of the accountholder to authorize my employer/company to make direct deposits into the named account.

Employee/Worker Signature Bryan Forino Date 6/8/2020

Note: Digital or Electronic Signatures are not acceptable.

I confirm that the above named employee/worker has added or changed a bank account for direct deposit transactions processed by Paychex, Inc. I have reviewed the information provided and it is accurate to the best of my knowledge. My signature below indicates that I have the authority to execute this document on behalf of the Client.

Employer/Company Representative Printed Name: Ann F. Maynard

Employer/Company Representative Signature: Ann F. Maynard Date: 6/8/2020

* All fields are required except Employee/Worker Number.

** Certain accounts may have restrictions on deposits and withdrawals. Check with your bank for more information specific to your account.



2020 Benefits Overview * Employee

Benefit	Description	Employee Contribution	Vestment Period
Health Insurance <i>(Premium Only Plan – Section 125)</i>	Excellus SimplyBlue Plus Gold 6 Company covers 50% of the equivalent Silver 19 premium cost and provides a Health Reimbursement Account (HRA) in the amount of \$1,400 single/\$4,300 family	Balance of premium costs <u>not</u> covered by the Company plus applicable out of pocket annual maximum of \$2,800 single/ \$5,600 family less employer provided HRA	Upon the completion of ninety (90) days
	Excellus SimplyBlue Silver 19 Company covers 50% of the premium cost and provides an HRA in the amount of \$2,250 single/\$5,500 family	50% of the premium costs plus co-pays up to annual out of pocket maximum of \$6,900 single/ \$13,800 family less supplemental employer provided	Upon the completion of ninety (90) days
	Excellus SimplyBlue Plus Bronze 4 Company covers 50% of the premium cost and provides an HRA in the amount of \$2,250 single/\$5,500 family	50% of the premium costs plus applicable out of pocket annual maximum of \$6,750 single/ \$13,500 family less employer provided HRA	Upon the completion of ninety (90) days
Health Club Allowance	Company will pay 25% of annual dues to a maximum of \$100/year towards an active membership in a health club subject to prior approval	Any portion over company contribution	Upon the completion of ninety (90) days
Employee Assistance Program (EAP)	A fully integrated work/life Employee Assistance Program (EAP), designed to help effectively balance the competing demands of work and life before personal problems affect professional performance	N/A	Upon the completion of ninety (90) days
Flexible Spending Account <i>(Section 125)</i>	Pre-tax budgeting tool to help pay out-of-pocket medical, dental, vision, prescription drug and dependent care expenses not covered by other company insurance benefits	Voluntary contribution up to \$2,650 annually for medical; \$5,000 dependent care deduction	Upon the completion of ninety (90) days
Supplemental Short-Term Disability <i>(offered through AFLAC)</i>	Provides earnings coverage for up to 6 months of Temporary Disability when unable to work <i>This benefit supplements coverage for which you are entitled under NYS Disability Law</i>	100%	First of the month following ninety (90) days

Rochester
Syracuse
Lyons



Savings and Investment Plan	401K defined contribution plan		Deferral of up to 25% of annual gross wages but not to exceed \$19,500	One (1) year, over 21 years of age, and works more than 1000 hours per year
	Company invests on behalf of each employee a percentage of annual gross wages for all plan-eligible employees in accordance with the following schedule:			
	Employee Contribution	Employer Match	Additional \$6,500 catch-up contribution for employees aged 50 and over	
	1%	1%		
	2%	2%		
	3%	3%		
	4%	3.5%		
5%	4%	Pre-tax and after-tax (Roth) programs available.		

* These benefits do not constitute a contract with the employee and may be subject to change without notice.

† Subject to prior approval. Employee must achieve a minimum grade point average. Actual percentage is at the discretion of management.

NOTE: All Johnstone Supply employees are employed at will

I have received a copy of this document.

Employee Signature

Bryan Forina

Name of Employee (please print)

Bryan Forina

Date

5/26/2020

Rochester

Syracuse

Lyons

Acknowledgment of Receipt and Review

By signing below, I acknowledge that I have received a copy of Johnstone Supply of Central NY's Employee Handbook (handbook) and that I have read it, understand it, and agree to comply with it. I understand that the Company has the maximum discretion permitted by law to interpret, administer, change, modify, or delete the rules, regulations, procedures, and benefits contained in the handbook at any time with or without notice. No statement or representation by a supervisor, manager, or any other employee, whether oral or written, can supplement or modify this handbook. Changes can only be made if approved in writing by the General Manager of the Company. I also understand that any delay or failure by the Company to enforce any rule, regulation, or procedure contained in the handbook does not constitute a waiver on behalf of the Company or effect the right of the Company to enforce such rule, regulation, or procedure in the future.

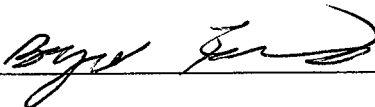
I understand that neither this handbook nor any other communication by a management representative or other, whether oral or written, is intended in any way to create a contract of employment. I further understand that, unless I have a written employment agreement signed by an authorized Company representative, I am employed "at-will" (to the extent permitted by law) and this handbook does not modify my "at-will" employment status.

If I am covered by a written employment agreement signed by the General Manager or a collective-bargaining agreement that conflicts with the terms of this handbook, I understand that the terms of the employment agreement or collective-bargaining agreement will control.

This handbook is not intended to preclude or dissuade employees from engaging in legally protected activities under the National Labor Relations Act (NLRA).

This handbook supersedes any previous handbook or policy statements, whether written or oral, issued by Johnstone Supply of Central NY.

If I have any questions about the content or interpretation of this handbook, I will contact my manager.


Signature

6/8/2020
Date

Bryan Forino
Print Name

Receipt of Non-Harassment Policy

It is Johnstone Supply of Central NY's policy to prohibit intentional and unintentional harassment of any individual by another person on the basis of any protected classification including, but not limited to, race, color, national origin, disability, religion, marital status, veteran status, sexual orientation or age. The purpose of this policy is not to regulate our employees' personal morality, but to ensure that in the workplace, no one harasses another individual.

If an employee feels that he or she has been subjected to conduct which violates this policy, he or she should immediately report the matter to the Controller. If the employee is unable for any reason to contact this person, or if the employee has not received a satisfactory response within five (5) business days after reporting any incident of what the employee perceives to be harassment, the employee should contact the President. If the person toward whom the complaint is directed is one of the individuals indicated above, the employee should contact any higher-level manager in his or her reporting hierarchy. Every report of perceived harassment will be fully investigated and corrective action will be taken where appropriate. All complaints will be kept confidential to the extent possible, but confidentiality cannot be guaranteed. In addition, the Company will not allow any form of retaliation against individuals who report unwelcome conduct to management or who cooperate in the investigations of such reports in accordance with this policy. If an employee feels he or she has been subjected to any such retaliation, he or she should report it in the same manner in which the employee would report a claim of perceived harassment under this policy. Violation of this policy including any improper retaliatory conduct will result in disciplinary action, up to and including discharge. All employees must cooperate with all investigations.

I have read and I understand Johnstone Supply of Central NY's Non-Harassment Policy.

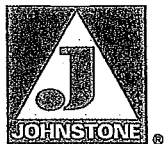
Employee's Printed Name: Bryan Forino

Employee's Signature: Bryan Forino

Position: Accountant & Financial Analyst

Date: 6/8/2020

The signed original copy of this receipt should be given to management - it will be filed in your personnel file.



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Sexual Harassment Prevention Policy

Johnstone Supply of Central NY is committed to maintaining a workplace free from sexual harassment. Sexual harassment is a form of workplace discrimination. All employees are required to work in a manner that prevents sexual harassment in the workplace. This Policy is one component of Johnstone Supply of Central NY's commitment to a discrimination-free work environment. Sexual harassment is against the law¹ and all employees have a legal right to a workplace free from sexual harassment and employees are urged to report sexual harassment by filing a complaint internally with Johnstone Supply of Central NY's HR, Controller or President.

Employees can also file a complaint with a government agency or in court under federal, state or local antidiscrimination laws.

Policy:

1. Johnstone Supply of Central NY's policy applies to all employees, applicants for employment, interns, whether paid or unpaid, contractors and persons conducting business, regardless of immigration status, with Johnstone Supply of Central NY. In the remainder of this document, the term "employees" refers to this collective group.
2. Sexual harassment will not be tolerated. Any employee or individual covered by this policy who engages in sexual harassment or retaliation will be subject to remedial and/or disciplinary action (e.g., counseling, suspension, termination).
3. Retaliation Prohibition: No person covered by this Policy shall be subject to adverse action because the employee reports an incident of sexual harassment, provides information, or otherwise assists in any investigation of a sexual harassment complaint. Johnstone Supply of Central NY will not tolerate such retaliation against anyone who, in good faith, reports or provides information about suspected sexual harassment. Any employee of Johnstone Supply of Central NY who retaliates against anyone involved in a sexual harassment investigation will be subjected to disciplinary action, up to and including termination. All employees paid or unpaid interns, or non-employees² working in the workplace who believe they have been subject to such retaliation should inform a supervisor, manager, HR, Controller or President. All employees, paid or unpaid interns or non-employees who believe they have been a target of such retaliation may also seek relief in other available forums, as explained below in the section on Legal Protections.

¹ While this policy specifically addresses sexual harassment, harassment because of and discrimination against persons of all protected classes is prohibited. In New York State, such classes include age, race, creed, color, national origin, sexual orientation, military status, sex, disability, marital status, domestic violence victim status, gender identity and criminal history.

² A non-employee is (or is employed by) a contractor, subcontractor, vendor, consultant, or anyone providing services in the workplace. Protected non-employees include persons commonly referred to as independent contractors, "gig" workers and temporary workers. Also included are persons providing equipment repair, cleaning services or any other services provided pursuant to a contract with the employer.



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4. Sexual harassment is offensive, is a violation of our policies, is unlawful, and may subject Johnstone Supply of Central NY to liability for harm to targets of sexual harassment. Harassers may also be individually subject to liability. Employees of every level who engage in sexual harassment, including managers and supervisors who engage in sexual harassment or who allow such behavior to continue, will be penalized for such misconduct.
5. Johnstone Supply of Central NY will conduct a prompt and thorough investigation that ensures due process for all parties, whenever management receives a complaint about sexual harassment, or otherwise knows of possible sexual harassment occurring. Johnstone Supply of Central NY will keep the investigation confidential to the extent possible. Effective corrective action will be taken whenever sexual harassment is found to have occurred. All employees, including managers and supervisors, are required to cooperate with any internal investigation of sexual harassment.
6. All employees are encouraged to report any harassment or behaviors that violate this policy. Johnstone Supply of Central NY will provide all employees a complaint form for employees to report harassment and file complaints.
7. Managers and supervisors are **required** to report any complaint that they receive, or any harassment that they observe or become aware of, to HR, Controller or President.
8. This policy applies to all employees, paid or unpaid interns, and non-employees and all must follow and uphold this policy. This policy must be provided to all employees and should be posted prominently in all work locations to the extent practicable (for example, in a main office, not an offsite work location) and be provided to employees upon hiring.

What Is "Sexual Harassment"?

Sexual harassment is a form of sex discrimination and is unlawful under federal, state, and (where applicable) local law. Sexual harassment includes harassment on the basis of sex, sexual orientation, self-identified or perceived sex, gender expression, gender identity and the status of being transgender.

Sexual harassment includes unwelcome conduct which is either of a sexual nature, or which is directed at an individual because of that individual's sex when:

- Such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile or offensive work environment, even if the reporting individual is not the intended target of the sexual harassment;
- Such conduct is made either explicitly or implicitly a term or condition of employment; or



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- Submission to or rejection of such conduct is used as the basis for employment decisions affecting an individual's employment.

A sexually harassing hostile work environment includes, but is not limited to, words, signs, jokes, pranks, intimidation or physical violence which are of a sexual nature, or which are directed at an individual because of that individual's sex. Sexual harassment also consists of any unwanted verbal or physical advances, sexually explicit derogatory statements or sexually discriminatory remarks made by someone which are offensive or objectionable to the recipient, which cause the recipient discomfort or humiliation, which interfere with the recipient's job performance.

Sexual harassment also occurs when a person in authority tries to trade job benefits for sexual favors. This can include hiring, promotion, continued employment or any other terms, conditions or privileges of employment. This is also called "quid pro quo" harassment.

Any employee who feels harassed should report so that any violation of this policy can be corrected promptly. Any harassing conduct, even a single incident, can be addressed under this policy.

Examples of sexual harassment

The following describes some of the types of acts that may be unlawful sexual harassment and that are strictly prohibited:

- Physical acts of a sexual nature, such as:
 - Touching, pinching, patting, kissing, hugging, grabbing, brushing against another employee's body or poking another employee's body;
 - Rape, sexual battery, molestation or attempts to commit these assaults.
- Unwanted sexual advances or propositions, such as:
 - Requests for sexual favors accompanied by implied or overt threats concerning the target's job performance evaluation, a promotion or other job benefits or detriments;
 - Subtle or obvious pressure for unwelcome sexual activities.
- Sexually oriented gestures, noises, remarks or jokes, or comments about a person's sexuality or sexual experience, which create a hostile work environment.
- Sex stereotyping occurs when conduct or personality traits are considered inappropriate simply because they may not conform to other people's ideas or perceptions about how individuals of a particular sex should act or look.
- Sexual or discriminatory displays or publications anywhere in the workplace, such as:
 - Displaying pictures, posters, calendars, graffiti, objects, promotional material, reading materials or other materials that are sexually demeaning or pornographic. This includes



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such sexual displays on workplace computers or cell phones and sharing such displays while in the workplace.

- Hostile actions taken against an individual because of that individual's sex, sexual orientation, gender identity and the status of being transgender, such as:
 - Interfering with, destroying or damaging a person's workstation, tools or equipment, or otherwise interfering with the individual's ability to perform the job;
 - Sabotaging an individual's work;
 - Bullying, yelling, name-calling.

Who can be a target of sexual harassment?

Sexual harassment can occur between any individuals, regardless of their sex or gender. New York Law protects employees, paid or unpaid interns, and non-employees, including independent contractors, and those employed by companies contracting to provide services in the workplace. Harassers can be a superior, a subordinate, a coworker or anyone in the workplace including an independent contractor, contract worker, vendor, client, customer or visitor.

Where can sexual harassment occur?

Unlawful sexual harassment is not limited to the physical workplace itself. It can occur while employees are traveling for business or at employer sponsored events or parties. Calls, texts, emails, and social media usage by employees can constitute unlawful workplace harassment, even if they occur away from the workplace premises, on personal devices or during non-work hours.

Retaliation

Unlawful retaliation can be any action that could discourage a worker from coming forward to make or support a sexual harassment claim. Adverse action need not be job-related or occur in the workplace to constitute unlawful retaliation (e.g., threats of physical violence outside of work hours).

Such retaliation is unlawful under federal, state, and (where applicable) local law. The New York State Human Rights Law protects any individual who has engaged in "protected activity." Protected activity occurs when a person has:

- made a complaint of sexual harassment, either internally or with any anti-discrimination agency;
- testified or assisted in a proceeding involving sexual harassment under the Human Rights Law or other anti-discrimination law;
- opposed sexual harassment by making a verbal or informal complaint to management, or by



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simply informing a supervisor or manager of harassment;

- reported that another employee has been sexually harassed; or
- encouraged a fellow employee to report harassment.

Even if the alleged harassment does not turn out to rise to the level of a violation of law, the individual is protected from retaliation if the person had a good faith belief that the practices were unlawful. However, the retaliation provision is not intended to protect persons making intentionally false charges of harassment.

Reporting Sexual Harassment

Preventing sexual harassment is everyone's responsibility. Johnstone Supply of Central NY cannot prevent or remedy sexual harassment unless it knows about it. Any employee paid or unpaid intern or non- employee who has been subjected to behavior that may constitute sexual harassment is encouraged to report such behavior to a supervisor, manager, HR, Controller or President. Anyone who witnesses or becomes aware of potential instances of sexual harassment should report such behavior to a supervisor, manager, HR, Controller or President.

Reports of sexual harassment may be made verbally or in writing. A form for submission of a written complaint is attached to this Policy, and all employees are encouraged to use this complaint form. Employees who are reporting sexual harassment on behalf of other employees should use the complaint form and note that it is on another employee's behalf.

Employees, paid or unpaid interns or non-employees who believe they have been a target of sexual harassment may also seek assistance in other available forums, as explained below in the section on Legal Protections.

Supervisory Responsibilities

All supervisors and managers who receive a complaint or information about suspected sexual harassment, observe what may be sexually harassing behavior or for any reason suspect that sexual harassment is occurring, **are required** to report such suspected sexual harassment to the CFO or President.

In addition to being subject to discipline if they engaged in sexually harassing conduct themselves, supervisors and managers will be subject to discipline for failing to report suspected sexual harassment or otherwise knowingly allowing sexual harassment to continue.

Supervisors and managers will also be subject to discipline for engaging in any retaliation.



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Complaint and Investigation of Sexual Harassment

All complaints or information about sexual harassment will be investigated, whether that information was reported in verbal or written form. Investigations will be conducted in a timely manner and will be confidential to the extent possible.

An investigation of any complaint, information or knowledge of suspected sexual harassment will be prompt and thorough, commenced immediately and completed as soon as possible. The investigation will be kept confidential to the extent possible. All persons involved, including complainants, witnesses and alleged harassers will be accorded due process, as outlined below, to protect their rights to a fair and impartial investigation.

Any employee may be required to cooperate as needed in an investigation of suspected sexual harassment. Johnstone Supply of Central NY will not tolerate retaliation against employees who file complaints, support another's complaint or participate in an investigation regarding a violation of this policy.

While the process may vary from case to case, investigations should be done in accordance with the following steps:

- Upon receipt of complaint, HR, Controller or President will conduct an immediate review of the allegations, and take any interim actions (e.g., instructing the respondent to refrain from communications with the complainant), as appropriate. If complaint is verbal, encourage the individual to complete the "Complaint Form" in writing. If he or she refuses, prepare a Complaint Form based on the verbal reporting.
- If documents, emails or phone records are relevant to the investigation, take steps to obtain and preserve them.
- Request and review all relevant documents, including all electronic communications.
- Interview all parties involved, including any relevant witnesses;
- Create a written documentation of the investigation (such as a letter, memo or email), which contains the following:
 - A list of all documents reviewed, along with a detailed summary of relevant documents;
 - A list of names of those interviewed, along with a detailed summary of their statements;
 - A timeline of events;
 - A summary of prior relevant incidents, reported or unreported; and
 - The basis for the decision and final resolution of the complaint, together with any corrective action(s).



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- Keep the written documentation and associated documents in a secure and confidential location.
- Promptly notify the individual who reported and the individual(s) about whom the complaint was made of the final determination and implement any corrective actions identified in the written document.
- Inform the individual who reported of the right to file a complaint or charge externally as outlined in the next section.

Legal Protections And External Remedies

Sexual harassment is not only prohibited by Johnstone Supply of Central NY but is also prohibited by state, federal, and, where applicable, local law.

Aside from the internal process at Johnstone Supply of Central NY, employees may also choose to pursue legal remedies with the following governmental entities. While a private attorney is not required to file a complaint with a governmental agency, you may seek the legal advice of an attorney.

In addition to those outlined below, employees in certain industries may have additional legal protections.

State Human Rights Law (HRL)

The Human Rights Law (HRL), codified as N.Y. Executive Law, art. 15, § 290 et seq., applies to all employers in New York State with regard to sexual harassment, and protects employees, paid or unpaid interns and non-employees, regardless of immigration status. A complaint alleging violation of the Human Rights Law may be filed either with the Division of Human Rights (DHR) or in New York State Supreme Court.

Complaints with DHR may be filed any time **within one year** of the harassment. If an individual did not file at DHR, they can sue directly in state court under the HRL, **within three years** of the alleged sexual harassment. An individual may not file with DHR if they have already filed a HRL complaint in state court.

Complaining internally to Johnstone Supply of Central NY does not extend your time to file with DHR or in court. The one year or three years is counted from date of the most recent incident of harassment.



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You do not need an attorney to file a complaint with DHR, and there is no cost to file with DHR.

DHR will investigate your complaint and determine whether there is probable cause to believe that sexual harassment has occurred. Probable cause cases are forwarded to a public hearing before an administrative law judge. If sexual harassment is found after a hearing, DHR has the power to award relief, which varies but may include requiring your employer to take action to stop the harassment, or redress the damage caused, including paying of monetary damages, attorney's fees and civil fines.

DHR's main office contact information is: NYS Division of Human Rights, One Fordham Plaza, Fourth Floor, Bronx, New York 10458. You may call (718) 741-8400 or visit: www.dhr.ny.gov.

Contact DHR at (888) 392-3644 or visit dhr.ny.gov/complaint for more information about filing a complaint. The website has a complaint form that can be downloaded, filled out, notarized and mailed to DHR. The website also contains contact information for DHR's regional offices across New York State.

Civil Rights Act of 1964

The United States Equal Employment Opportunity Commission (EEOC) enforces federal anti-discrimination laws, including Title VII of the 1964 federal Civil Rights Act (codified as 42 U.S.C. § 2000e et seq.). An individual can file a complaint with the EEOC anytime within 300 days from the harassment. There is no cost to file a complaint with the EEOC. The EEOC will investigate the complaint and determine whether there is reasonable cause to believe that discrimination has occurred, at which point the EEOC will issue a Right to Sue letter permitting the individual to file a complaint in federal court.

The EEOC does not hold hearings or award relief but may take other action including pursuing cases in federal court on behalf of complaining parties. Federal courts may award remedies if discrimination is found to have occurred. In general, private employers must have at least 15 employees to come within the jurisdiction of the EEOC.

An employee alleging discrimination at work can file a "Charge of Discrimination." The EEOC has district, area, and field offices where complaints can be filed. Contact the EEOC by calling 1-800-669-4000 (TTY: 1-800-669-6820), visiting their website at www.eeoc.gov or via email at info@eeoc.gov.

If an individual filed an administrative complaint with DHR, DHR will file the complaint with the EEOC to preserve the right to proceed in federal court.

Local Protections

Many localities enforce laws protecting individuals from sexual harassment and discrimination. An individual should contact the county, city or town in which they live to find out if such a law exists. For



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example, employees who work in New York City may file complaints of sexual harassment with the New York City Commission on Human Rights. Contact their main office at Law Enforcement Bureau of the NYC Commission on Human Rights, 40 Rector Street, 10th Floor, New York, New York; call 311 or (212) 306-7450; or visit www.nyc.gov/html/cchr/html/home/home.shtml.

Contact the Local Police Department

If the harassment involves unwanted physical touching, coerced physical confinement or coerced sex acts, the conduct may constitute a crime. Contact the local police department.

Employee Signature: 

Print Name: Bryan Forino

Date: 6/18/2020

SHP



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Tel: (585) 482-8000 • Fax: (585) 482-6000
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Smoke and Vape-Free Workplace Policy

Introduction

Johnstone Supply of CNY is committed to providing a safe and healthy workplace and to promoting the health and well-being of its employees. As such, the following policy has been adopted and applies to all employees of Johnstone Supply of CNY.

Policy

It is the policy of Johnstone Supply of CNY to prohibit smoking and vaping on all company premises to provide a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind." Vaping refers to the use of electronic nicotine delivery systems or electronic smoking devices such as e-cigarettes, e-pipes, e-hookahs and e-cigars.

Scope

This policy applies to:

- All areas of buildings occupied by company employees.
- All company-sponsored offsite conferences and meetings.
- All vehicles owned or leased by the company.
- All company employees.
- All visitors (customers and vendors) to company premises.
- All contractors and consultants and/or their employees working on company premises.
- All temporary employees.
- All student interns.

Smoking and vaping are permitted *only* in the following designated outdoor areas:



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Procedures

Employees who violate this policy will be subject to disciplinary action up to and including immediate discharge.

A process is in place for resolving complaints about the smoke- and vape-free policy:

- Complaints about the application of this policy should be brought to the attention of the Human Resources, Controller or the President for resolution.
- The complaint should be submitted in writing and should identify specific objections.
- Johnstone Supply of CNY will investigate the complaint and resolve it in accordance with the policy.

No employee shall suffer any form of retaliation for raising a complaint or asking a question about this policy.

This policy is intended to comply with the requirements of [title of ordinance].

Statement of Understanding

I have read and fully understand the terms of this policy.

I understand that any violation of this policy will result in disciplinary action up to and including immediate discharge.

I understand that Johnstone Supply of CNY reserves the right to make changes to this policy as needed.

Bryan Ferine

Employee Name

Bryan Ferine

Employee Signature

6/8/2020

Date



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AUTHORIZATION TO DEDUCT EXPENSES

As a benefit of employment, you are accorded the opportunity to purchase product out of the catalog of **JOHNSTONE SUPPLY** at the cost prevailing at time of purchase. Unless authorized, purchases are intended for personal or immediate family use only.

In addition, you will automatically be set up with a credit limit allowing you to charge purchases with net 30-day terms. Having this benefit will allow you to use **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]** as a credit reference when applying for credit elsewhere. Your credit limit will be reviewed periodically and adjusted accordingly.

Obviously, abuse of this privilege puts this benefit at risk for you. Payment of obligations beyond terms and without previous authorized consent will suspend your benefit. Upon termination of employment, this benefit is voided, and all outstanding obligations are immediately due. Finance charges and collection expenses, if any, may also apply.

Since this is a benefit and a privilege of employment with **JOHNSTONE SUPPLY of Central NY** you are not obligated to use it, however, should you wish to take advantage of this unique opportunity you are asked to authorize the company to collect past due expenses by payroll deduction.

* * * *

I have read the information above and do hereby authorize **The KL Group, Inc., d/b/a JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]** the right to deduct any past due expenditures for company services or products acquired during the course of my employment for personal use from my paycheck.


Employee

6/8/2020
Date

I have read the information above and do **not** wish to partake of the benefit offered to me.

Employee

Date



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EMPLOYEE ACCOUNT APPLICATION

Employee Name: Bryan Forino
Address: 102 Bending Creek Rd
Address 2: _____
City/ST/Zip: Rochester, NY, 14624 Apt 3
County: Monroe
Phone: 973 222 0102 Fax #: _____
Cell#: 973 222 0102 Other #: _____
Email Address: forinobryan5@gmail.com
I, Bryan Forino SS# 134-04-3381
OR Driver's License # _____

I hereby personally guarantee to you, Johnstone Supply of CNY, any obligation of the above named Employee and/or its successor. I also agree to bind myself to pay you on demand any sum, which may become due to you by the above named Employee, whenever the above named Employee fails to pay the same. If credit is granted, I agree to pay within established terms. If payment is not made within terms, I agree to pay all service charges. In the event this account is referred amount of twenty-five percent of the principal amount. If suit or action by an attorney amount of twenty-five percent of the principal amount. If suit or action by an attorney for collections, I agree to pay cost of collection equal to a minimum is instituted, I promise to pay attorney fees in said suit or action. Venue shall be in the state and county of Johnstone Supply's choice. Applicant specifically understands that they are waiving their right in choice of venue. Applicant agrees to pay interest and service charges at the highest rate permitted by law.

Signed: Bryan Forino
Date: 6/8/2020

"National Supplier to the Service Industry Since 1953"



New Employee Login and Passwords

**** CONFIDENTIAL ****

Employee: Bryan Forino
Supervisor: Karen Craft

Associate ID:
Start Date: 06.08.20

Microsoft Windows Login

Username:	bryan.forino
Password:	Spring2020! (this is temporary until you change it)

Outlook

Email Account	bryan.forino @johnstonehvac-ny.com
Password:	Same as Windows login

Microsoft SharePoint

Username:	Same as Windows login
Password:	Same as Windows login

MITS Discover – Data Analytics Package

Username:	bryan.forino
Password:	Same as Windows login

DDI Inform

Password to connect:	Same as Windows login
Password:	BDF0102

Johnstone Employee Network (JEN)

Username:	AdminOff141
Password:	Store141

Johnstone University Online (JU Online)

Username:	bryan.forino @johnstonehvac-ny.com
Password:	Summer2020!@ (this is temporary until you change it)

Voicemail Login

Number/Extension:	141
Dial:	6141
Password:	870088 (this is temporary until you change it)

Building Access

Branch Access Code:	
Admin Office Code:	

Rochester
Syracuse
Lyons

Ann Maynard

From: Terri Paslay <terri.paslay@usi.com>
Sent: Wednesday, May 27, 2020 3:11 PM
To: Ann Maynard
Subject: RE: New Hire Bryan Forino
Attachments: Bryan Forino Driver Info Request Form.pdf

Ann:

The motor vehicle record for Bryan Forino is acceptable per Hartford guidelines. We will add him to the driver schedule.

Thanks,
Terri Paslay
USI Insurance Services
601 Union Street, Suite 1000
Seattle, WA 98101
Phone: (360) 787-9828/Fax: (610)537-2350
E-mail: terri.paslay@usi.com

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From: Ann Maynard <Ann.Maynard@johnstonehvac-ny.com>
Sent: Wednesday, May 27, 2020 11:37 AM
To: Marie Kelley <Marie.Kelley@usi.com>; Judy Barnes <Judy.Barnes@usi.com>; Terri Paslay <terri.paslay@usi.com>
Subject: New Hire Bryan Forino

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Hi All,

I have attached the Driver Info Request on Bryan Forino who will be starting on June 8, 2020 at Johnstone Supply of CNY in the Rochester Corporate office. Bryan will be the Accounting & Financial Analyst. he will be driving to the Syracuse office now and then.

Best,

Ann Maynard

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Johnstone Supply Lead Store #141

Driver Information Request

Today's Date:

5/26/2020

To:

Kibble & Prentice - Marie Kelley or Liz Suckow

EMAIL: *marie.kelley@kpcom.com* or *liz.suckow@kpcom.com*

FAX: (610) 362-8518

From:

Bryan Forino

To: Johnstone Supply and Kibble & Prentice:

I,

Bryan Forino
Employee or Prospective Employee Name (Printed)

voluntarily and knowingly authorize Kibble & Prentice, now and in the future while I am employed by Johnstone Supply Co., to check both my employment related driving record and my non-employment driving record, and to make that information available to Johnstone Supply Co. and its designated insurance carrier.

I also voluntarily and knowingly unconditionally release any named or unnamed informant from any and all liability resulting from the furnishing of this information.

CDL License? ☐ Yes ☒ No

Drivers License Number:

F	6	6	0	2	1	0	2	6	4	1	2	9
---	---	---	---	---	---	---	---	---	---	---	---	---

75

State of Licensing New Jersey

Date of Birth 12-22-1997

If other state drivers license enter here New Jersey

Bryan Forino
Signature of Employee or Prospective Employee